

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
STEPHEN GREENE,

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

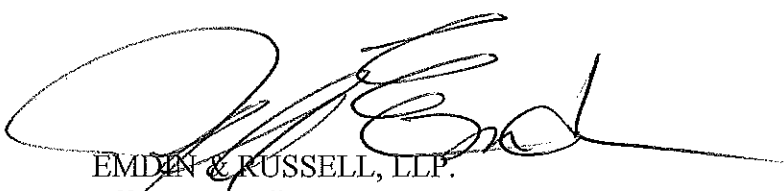
THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
VICTOR GONZALEZ, SHIELD # 16688., 30TH PCT.,
INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER ROBERT
LENIHAN, SHIELD # 746, 30TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,
Defendants.

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 5th day of June, 2015


EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq.,
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N

New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer Victor Gonzalez
Police Officer Robert Lenihan
c/o 30th pct.

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Defendants.

-----X

The plaintiff, Stephen Greene, by his attorneys, Emdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the
defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal
corporation duly organized and existing under, and by virtue of, the laws of the State of New
York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, the
City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and
controlled the New York City Police Department, hereinafter referred to as "NYPD", including
all the police officers and correction officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 5th
day of June, 2014, Police Officer Victor Gonzalez, hereinafter referred to as "Gonzalez" was

employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 30th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield # is 16688.

4. Upon information and belief at all times hereinafter mentioned and on the 5th day of June, 2014, "Gonzalez", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/

5. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of June, 2014, Police Officer Robert Lenihan, hereinafter referred to as "Lenihan" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 30th pct., his shield number is 746,, and at all relevant times set forth below acted in the capacity of a police officer.

6. Upon information and belief at all times hereinafter mentioned and on the 5th day of June, 2014, "Lenihan" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

7. Collectively Gonzalez and Lenihan will hereafter be referred to as the "officers".

8. Upon information and belief, on June 5, 2014 the "officers", individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines.

9. On the 5th day of June, 2014, plaintiff Stephen Greene, hereinafter referred to as "Greene" was a resident of the State of New York, County of New York.

10. That on June 5, 2014, at approximately 12:40 p.m. the plaintiff, Greene was lawfully walking in the vicinity of 150th Street between Convent and Amsterdam Avenues in

New York County, NY, hereinafter referred to as “the location”.

11. At that time and location, the plaintiff was stopped by the two officers in a NYPD van.

12. The defendant officers exited the van and approached the plaintiff demanding to know where he was going to , and whether he lived in the area..

13. The plaintiff produced identification and informed the officers that he was on his way to the bus stop.

14. The officers ordered the plaintiff to stand at a spot and not move.

15. One of the officers walked down the block, and disappeared from view. When he returned he was holding an object that appeared to be a rolled up tobacco.

16. The defendants called the plaintiff a “smart ass”, and then told the plaintiff to choose between two objects, one which appeared to be a joint, or rolled tobacco and the other a small glass container.

17. The plaintiff protested that neither was his and that he attends college. The officers made fun of the plaintiff’s speech impediment, and one said to the other to cuff his smart ass, which they did,

18. The defendants repeatedly demeaned and humiliated the plaintiff. One said “can you believe this kid wants to be a lawyer but he is dumb as fuck”.

19. The officers drove around New York County in excess of three hours with the plaintiff locked in the back. The officers even stopped for smoothies for themselves.

20. The officers refused to loosen the handcuffs despite the plaintiff’s requests that they were too tight and were hurting him.

21. The officers repeatedly made fun of the plaintiff's speech impediment, weight and called him other derogatory names.

22. The plaintiff was transported to the 30th pct.

23. The plaintiff was placed in a locked holding cell.

24. The plaintiff was fingerprinted and photographed.

25. The plaintiff was held in custody for several hours.

26. The officers attempted to intimidate the plaintiff and convince him to act as their agents in drug transactions.

27. At approximately 8:00 p.m. the plaintiff was released from custody, and was given a Desk Appearance Ticket for court on July 21, 2014.

28. The plaintiff was falsely charged with criminal possession of marijuana in the fifth degree.

29. A false criminal court complaint was signed by Victor Gonzalez alleging that the plaintiff was observed with marijuana in a public place, i.e. across from 747 Riverside Drive, and dropped it to the ground. This statement was falsely made.

30. Police Officer Lenihan was listed as the arresting officer and he filled out false police reports for the purpose of prosecuting the plaintiff. .

31. That as a result of the false charges the plaintiff had to hire legal counsel, incur legal fees, and make numerous court appearances.

32. The plaintiff had committed no crime and was not engaged in any criminal or suspicious activity when he was stopped, grabbed and seized.

33. On June 5, 2014, Gonzalez signed a supporting deposition for the purpose of

prosecuting the plaintiff.

34. Gonzalez claimed to have performed a field test on marijuana that was not possessed by the plaintiff.

35. The supporting deposition and the field test were submitted to the court with the intent to prosecute the plaintiff for crimes that he did not commit.

36. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City as per the Order of the Court dated March 25, 2015 .

37. That due to the pending criminal charges the City has stipulated to allow the plaintiff to file this complaint while reserving their right to hold a 50(h) at a future date when the criminal case is disposed.

38. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

39. That this action is commenced within one year and 90 days after the cause of action arose.

40. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

41. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully and at length set forth herein.

42. That beginning on or about the 5th day of June, 2014, at or about approximately 12:40 p.m. at or near the "location" until the plaintiff's release from custody on June 5, 2014 at 8:00 p.m., the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

43. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged and/or held.

44. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

45. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

46. That by reason of the aforesaid false imprisonment and detention, plaintiff was

subjected to great indignity, humiliation, and loss of freedom and the said plaintiff has been otherwise damaged.

47. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "47" with the same force and effect as if more fully and at length set forth herein.

49. That beginning on or about the 5th day of June, 2014, at or about approximately 12:40 p.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms..

50. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiff, when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

51. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely

against his will.

52. That the defendants, their agents servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

53. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

54. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

55. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and affect as if more fully and at length set forth herein.

56. The plaintiff was seized, searched, held, handcuffed, and kept in handcuffs for over three hours by the defendants.

57. That all said contact was committed without the plaintiff's permission or consent.

58. That all said contact was unlawful and without privilege.

59. That the use of force was excessive and without justification.

60. That all contact committed by defendants through their agents, servants, and/or

employees was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

61. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

62. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

63. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "62" with the same force and affect as if more fully and at length set forth herein.

64. That the defendant, "City" was careless and reckless in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising and promoting as and for its employees, defendants "Gonzalez" and "Lenihan", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

65. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against defendants Gonzalez and/or Lenihan, prior to their stop, seizure, search, discourtesy, fabrication of evidence and assault and battery of Greene on June 5, 2014.

66. That the City failed to properly retrain said officer(s), negligently continued to employ said officers, negligently promoted and assigned Gonzalez and/or Lenihan, negligently retained Gonzalez and/or Lenihan despite evidence of their police misconduct and continued to assign said officers without proper supervision, training and discipline.

67. That the 'officers', the while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police dates; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

68. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants Gonzalez and/or Lenihan without any negligence on the part of the plaintiff contributing thereto.

69. That by reason of the aforesaid, the plaintiff, was imprisoned, lost his freedom,

and stressed, and he was thereby damaged.

70. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION:
FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK

71. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "70" with the same force and effect as if more fully and at length set forth herein.

72. That on or about the 5th day of June, 2014 at or about approximately 12:40 p.m. at the "location" the "officers" were present thereat as part of their regular and official employment as police officers for the defendant, "City".

73. Plaintiff was lawfully and properly thereat, when the "officers" acting as agents, servants and/or employees of the defendant "City", forcibly stopped, seized and frisked the plaintiff absent just cause, provocation or reason. The plaintiff had not engaged in any criminal conduct or suspicious activity. The plaintiff is an African American male.

74. Upon information and belief the officers were required to fill out a stop, question and frisk report.

75. Upon information and belief they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.

76. Upon information and belief the officers fabricated a reason for stopping and searching the plaintiff.

77. Upon information and belief the officers fabricated the evidence that they allegedly recovered from the plaintiff or “abandoned” by the plaintiff.

78. Further the officers present at the plaintiff’s arrest failed to report the false arrest.

79. That in order to cover up their misconduct the officers, individually and/or collectively conspired to file false police reports, voucher false evidence, give false statements and/or sign a false criminal court complaint for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the plaintiff

80. That said acts constituted an illegal seizure of the plaintiff and deprived plaintiff of his rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

81. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements and deprived plaintiff of his rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

82. That plaintiff as an African American man was deprived of his right to equal protection under the law and was targeted and his rights violated based upon his race, a violation of the equal protection clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

83. That the officers conspired by and through their conduct , including among other things their overt acts, their failure to intervene stop and report, threatening witnesses, and the falsification of reports and evidence, to deprive or hinder the plaintiff’s right to justice, and to injure him.

84. Upon information and belief the City was on notice of defendant Gonzalez' history of violence, discourtesy, excessive force, threats, and misconduct but acted with deliberate indifference thereto and continued to not only employ Gonzalez.

85. Upon information and belief, on February 20, 2014 at approximately 7:35 a.m. at the south west corner of Amsterdam Avenue and West 144th Street, New York, NY, defendant Gonzalez physically seized Brian Castro without a warrant, probable cause or reasonable suspicion.

86. Upon information and belief Gonzalez and one other tackled and punched Castro, and placed him in handcuffs without probable cause.

87. Upon information and belief Gonzalez made a false complaint against Castro accusing him of dropping a bag of marijuana to the ground, and swinging a fist at Gonzalez.

88. Upon information and belief Castro sued Gonzalez and his partner Robinson, accusing him of engaging in a false arrest, planting or fabricating evidence, excessive use of force, deprivation of civil rights, unlawful seizure, and malicious prosecution.

89. Upon information and belief the City had knowledge of this prior act of Gonzalez and upon information and belief other prior similar acts of Gonzalez but took no meaningful action to discipline him, investigate him, retrain, reassign or monitor him, and acted with deliberate indifference to his conduct.

90. The City's deliberate indifference to Gonzalez and Lenihan's conduct was a direct contributing factor and cause of the plaintiff's injuries as stated in this complaint.

91. That the City acted with deliberate indifference to the need to properly train officers in areas including but not limited to stop, question and frisk, duty to report misconduct,

integrity control, evidence accountability, use of handcuffs, and probable cause.

92. That the City acted with deliberate indifference to the need to safeguard citizens constitutional rights.

93. That the City acted with deliberate indifference to need to investigate patterns of improper stop and frisk, false arrest and malicious prosecutions, and failed to fire or discipline officers who engage or participate in said conduct.

94. It is alleged herein that the Plaintiff was stopped, questioned and subsequently searched absent just cause or reasonable suspicion. That said actions were pursuant to an illegal and improper Stop and Frisk program, or policy that was promulgated and enforced by the Defendants and/or their agents, servants and/or employees. That such custom, policy and program has created a class of citizens, including the Plaintiff, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest or summons quotas or performance incentives or goals. Additional evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et al. v. City of New York, Commissioner Raymond Kelly, Mayor Michael Bloomberg et al. pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision filed May 16, 2012 certifying a class action lawsuit, it found that between the years 2004 and 2009 a reported 2.8 million people have been stopped and frisked. Of that number more than 87% were minority citizens. Summons or arrests were issued or made in approximately ten percent of the reported stops. Meaning that based on their NYPD records, their suspicions are incorrect nearly 9 out of 10 stops.

b. Justice Scheindlin found in the Floyd decision, that:

i. It is indisputable that the NYPD has an enormous Stop and Frisk program

- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical
- iii. The Stop and Frisk program has been designed and revised at the highest levels of the Department
- iv. The implementation of the program is conducted according to uniform and centralized rules
- v. Monitoring of the program is hierarchical
- vi. The program is the result of institutional decisions and directives

c. Justice Sheindlin further found that a preponderance of evidence shows that NYPD policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The court noted that street level stops have risen every year. That in 2004, Officers documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated October 17, 2011, Commissioner Kelly directed that “Department managers can and must set performance goals – relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals”. It further states that “uniformed members who do not demonstrate activities...or who fail to engage in proactive activities...will be evaluated accordingly and their assignments reassessed.”

d. Judge Scheinlin later ruled that the stop and frisk program of NYC unconstitutionally discriminated against minorities. Her rulings with respect to the unconstitutional policy and application by New York City Police Officers was appealed by the City, but upheld in which the Appellate Court refused to toss out the court’s ruling finding that

New York City carried out its stop and frisk program in an unconstitutional manner.

95. Upon information and belief said policy, custom and/or objectives were still in effect on June 5 2014, or to the extent that they were not explicitly in effect they were implicitly in effect through the City's deliberate indifference to the continuing practice of illegal stop and frisk, and questioning citizens based upon their race, including but not limited to officers failing to fill out required stop, question and frisk reports and going unpunished in their failure to do so.

96. Upon information and belief the defendants did not prepare a stop question and frisk form with regard to Stephen Greene, despite being required to do so, and upon information and belief did not receive any punishment with respect to said deliberate omission.

97. Upon information and belief officers attempt to circumvent their responsibility to fill out a stop question and frisk form by falsely claiming that they viewed the controlled substance in plain view, or that the controlled substance was dropped to the ground.

98. That said deliberate indifference to the practices of New York City Police Officers including the named defendant officers, lead to a culture within the New York City Police Department that resulted in the illegal stop and search of the plaintiff, the use of force against the plaintiff, the conspiracy to hide or destroy and/or falsify evidence, filing false reports, omitting required reports, failing to secure prompt necessary medical attention, threats, vulgarity and discrimination.

99. That the failure to discipline, punish, investigate, reassign, fire, retrain, test gave officers tacit approval that there conduct was either condoned or would go unpunished. That fact that officers who engaged in said conduct were promoted only provided further evidence to their underlings that there was a code of silence, or "brotherhood of blue", and that transgressions

should not be reported or the reporter would be deemed a persona non grata, or worse a “rat”.

100. Further pressure upon officers was threat by and through quota or performance objectives. Upon information and belief the NYPD, and/or City established performance standards which demanded, or resulted in increased levels of stops and frisks, resulting in the improper stop and frisk and later search of the plaintiff

101. This policy which, upon information and belief was in existence on January 16, 2014 was codified in a 10/17/11 Police Officer Performance Objectives Operation Order. In that Order Commissioner Kelly directed all commands that “Department managers can and must set performance goals” relating to the “issuance of summons, the stopping and questioning of suspicious individuals, and the arrests of criminals”. Upon information and belief that policy was still being enforced on June 5, 2014 through Police Commissioner Bratton

102. The same Operation Order stated “uniformed members.... Who do not demonstrate activities... or who fail to engage in proactive activities... will be evaluated accordingly and their assignments re-assessed”.

103. In the case of *Floyd v City of New York*, Justice Scheindlin cited evidence of a quota system which included a minimum number of monthly ”stops”. Said evidence includes:

a. the deposition of Inspector Dwayne Montgomery, Commander of the 28th pct, who testified that he expected his officers to conduct a minimum of 2.3 stop and frisk per month and used that number “as a way of just gauging whether or not they were doing their job” Floyd at 20.

b. Police Officer Adhyl Polanco of the 41st pct testified that his commanding officers announced specific quotas for arrests and summons. He further testified that officers

were threatened with reduced overtime or reassigned for failure to meet quotas.

c. Police Officer Adrian Schoolcraft recorded roll calls at the 81st pct where supervisors were yelling and instructing officers to conduct unlawful stop and arrests to meet higher performance numbers. This order was coming down “the chain of command”. These statements were made by Lieutenant Delafuents, Deputy Inspector Mauriello, and Sergeant Stukes and cites the instructions of Chief of Transportation Michael Scagnelli.

d. Police Officer Luis Pichardo of the 28th pct offered testimony that his supervisors imposed a five summons per tour quota.

104. Furthermore, upon information and belief the City has improperly taught or trained officers in the application of the 4th Amendment with respect to stop and frisk policies and procedures. In a recent decision by Judge Shira Scheindlin, she ruled in a related case, *Ligon v. The City of New York*, that the NYPD has systematically crossed the line when making trespass stops outside TAP (trespass affidavit program) buildings in the Bronx.

105. In reviewing the evidence in the *Ligon* case, Justice Scheindlin reached the conclusion that “the NYPD’s inaccurate training has taught officers the following lesson: stop and question first, develop reasonable suspicion later”.

106. Upon information and belief the City’s deliberate indifference to the unconstitutional practices of it’s employees, and in particular the named defendant officers, and the need for review and reformation was a contributing proximate cause of the plaintiff’s injuries

107. That said deliberate indifference to the need to:

a. train officers in search and seizure laws, stop and inquire, probable cause, use of force,

- and duty to intervene and report,
- b. to grade and test to see if officers mastered legal and tactical concepts
 - c. to ensure that each officer reads and understands legal bulletins provided
 - d. to provide officers with situational training for use of force
 - e. properly discipline officers who fail to follow police and administrative guidelines,
 - f. analyze disparities of application of stop, frisks, and use of force as applied between whites and minorities,
 - g. to analyze stop and frisk data in the context of arrests that were dismissed, summons dismissed,
 - h. to analyze stop and frisk data in the context of use of force/reasons for the use of force/ and whether the charges for which the force was used, i.e resisting arrest or assault of a police officer were sustained.
 - i. track, discipline, monitor, retrain and reassign officers who have questionable stop and frisk practices, use of force complaints, complaints of witness intimidation, providing false statements, among other violations, as reported by number of citizen complaints, notices of claim, lawsuits and/or dismissals of their arrests and summons and complaints of fellow officers, including data contained in unsubstantiated CCRB or IAB investigations
 - j. to retest officers knowledge of patrol guidelines when they are out of the academy
 - k. to provide situational simulations and to grade the officers performance, and not pass the officer until he or she has demonstrated adequate proficiency
 - l. to discipline officers who fail to report non-compliant officers or who engage in a

conspiracy of silence

- m. report all referrals for psychological counseling, and change the officers assignment if required or necessary.
 - n. analyze the use of force, and the amount of force used in proportion to the charges alleged and what if any injury was sustained by the officer
 - o. reassign officers who have a high number of complaints, lawsuits and/or investigations against them
 - p. hold on scene supervisors responsible for the enforcement of New York City Patrol Guildelines,
 - q. to hold officers responsible for failing to fill out stop and frisk reports
- all substantially contributed to the events of June 5, 2014.

108. Upon information and belief the City was aware that the NYPD customs, policies and procedures, as well as their deliberate indifference to the unconstitutional applications of their customs, policies and procedures, and need for reformation of its training, oversight, analysis, supervision, monitoring, disciplining and review would lead to constitutional violations of its citizenry, and did lead to said violations of the plaintiff's constitutional rights on June 5, 2014. Some examples follow:

- a. In the case of Ligon v. City of New York, Raymond W. Kelly et al. Justice Scheindlin's Opinion and Order filed 1/8/13, noted that the police training in laws of search and seizure are wrong. She sites as an example of inadequate training a Police Training Video (no. 5) which she stated incorrectly advised police officers what constituted a "stop", and whether force, or the threat of force must accompany the police

action to constitute a “stop”.

b. In *Ligon*, Justice Scheindlin found fault in the police training video which made incorrect distinctions between “stops” and “arrests”. In her decision she writes “By incorrectly implying that the encounters lacking the characteristics of a *arrest* are in fact not even *stops*, the video appears to train officers that they do not need reasonable suspicion to perform the kinds of stops that an accurate reading of the law would be classified as Terry stops. In other words, this video,trains officers that it is acceptable to perform stops.... or possibly even arrests, without reasonable suspicion”, pages 126,127

c. Justice Scheindlin further found that “the evidence of numerous unlawful stops at the hearing strengthens the conclusion that the NYPD’s inaccurate training has taught officers the following lessons: stop and question first, develop reasonable suspicion later” *Ligon* at 131.

109. Further, upon information and belief, police officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.

110. That the plaintiff’s false arrest, assault and battery, and malicious prosecution and violation of his constitutional rights resulted from the defendant City’s practices, policies and/or customs, and/or their deliberate indifference to patterns and /or police practices which included illegal use of police equipment; failing follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct;

engaging in racial profiling; failing to properly supervise, train, investigate or discipline officers; engaging in illegal stop question and frisks, permitting or condoning illegal search and seizure of property and persons, any and /or all of the above contributing to plaintiff's false arrest, and prosecution, and injuries.

111. Defendants actions on June 5 , 2014 were performed under the color of law and the policies, statues, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the plaintiff.

112. That plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

113. That by reason of the aforesaid, the plaintiff was deprived his liberty, assaulted, injured, maliciously prosecuted, and he was damaged.

114. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTH AND SEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICERS GONZALEZ AND
LENIHAN IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

115. The plaintiff repeats, reiterates and realleges each and every allegation contained

in paragraphs marked "1" through "114" with the same force and effect as if more fully and at length set forth herein.

116. That at all times hereinafter mentioned, the defendant "Gonzalez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

117. That at all times hereinafter mentioned, the defendant "Lenihan" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

118. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

119. That during all times hereinafter mentioned, the defendants "officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

120 That the unlawful and illegal conduct of defendants "officers" deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the

United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right not to be discriminated against based upon the plaintiff's race, creed, sex, or sexual orientation.

c) The right to Due Process Law.

d) The right to equal protection under the law.

e) The right not to be subjected to cruel and unusual punishment

121. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, falsifying evidence, discrimination, and malicious prosecution the defendant Police "Officers" violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

122. That as a direct proximate result of "the officers" actions plaintiff was physically and emotionally injured, lost his job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

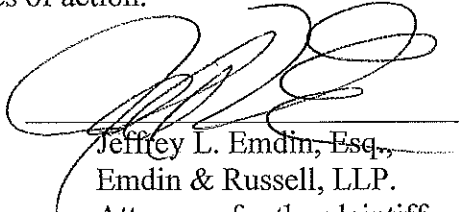
123. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,.

124. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive

damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the fifth through seventh causes of action) and such other and further relief as to the Court seems just and proper on the First through the Seventh causes of action.

DATED: New York, New York
June 5 , 2015



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

IN THE MATTER OF THE CLAIM OF

Stephen Greene

against

THE CITY OF NEW YORK,

STIPULATION

Claim #

2015 PI 003923

IT IS HEREBY STIPULATED AND AGREED by the attorney for the above named claimant(s) and the Comptroller of the City of New York that:

1) The examination pursuant to General Municipal Law Section 50-h (hereinafter "50-h") of the above named claimant(s) currently scheduled for *6-12-2015* is hereby adjourned at the claimant's request. In particular, the claimant alleges that he/she is unable to attend the hearing due to

Criminal Charges Pending

2) Claimant shall be responsible for notifying the City of New York (hereinafter "City"), by certified or registered mail, return receipt requested within thirty (30) days after the claimant has become available to appear and give testimony at said hearing. The notification shall be sent to the Office of the Comptroller of the City, Bureau of Law and Adjustment, 1 Centre Street - 12th Floor, New York, NY 10007. A copy of this stipulation must be attached to the notification. Upon receipt of the notification, the City shall have ninety (90) days in which to schedule the hearing.

3) Claimant may commence an action against the City on the above claim within the applicable statute of limitations prior to the City conducting a hearing or physical examination of claimant pursuant to 50-h.

4) If claimant commences an action against the City, and/or any of its agents, servants or employees claimant(s)/plaintiff(s) shall make no discovery demands, issue shall not be joined, and the defendant(s) time to serve an answer shall extend until 30 days after proper notification has been made as set forth below that the examination(s) pursuant to 50-h is/are completed.

5) Proper notification that the examination(s) pursuant to 50-h is/are completed must be made by either certified or registered mail return receipt requested or hand delivery addressed to the Office of the Corporation Counsel, 100 Church Street, New York, NY 10007, Attention Deputy Chief of the Early Intervention Unit. (The notification must include a copy of this signed stipulation and a notarized copy of the hearing transcript with corrections, if any, and a power of attorney requesting that an answer be served.

6) Nothing herein shall be construed as a waiver of the City's rights pursuant to 50-h.

Dated: New York, NY

GPA, 2015

By: *[Signature]*
For the City

[Signature]
Attorney for Claimant/Plaintiff

[Signature]
Attorney Firm

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
STEPHEN GREENE

Claimant,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
VICTOR GONZALEZ, SHILED # 16688, AND P.O. JOHN DOE, IDENTITY PRESENTLY
UNKNOWN

Respondent.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL
Attorney for Claimant
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

To: Corporation Counsel
100 Church Street
New York, NY. 10007

Attorney(s) for Defendant (s)

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 5 2015

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT that an order of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the within named Court, at
on 20 ____